

		showing a reasonable and good faith attempt, either <i>in person, by telephone, or by videoconference</i>, to informally resolve each issue presented by the motion.” (Emphasis added.) The declaration submitted in support of the motion does not reflect any “meet and confer” attempt made in person, by telephone, or by videoconference. Moving party is directed to give notice.
5	Johnson - Trust (2024-01427023)	Motion to Quash Discovery Subpoena (2) Petitioner Tricia M. Johnson’s Motion to Quash Deposition Subpoena Served on the Kaiser Foundation (Billing), etc. (ROA 102) is GRANTED. Petitioner Tricia M. Johnson’s Motion to Quash Deposition Subpoena Served on the Kaiser Foundation (Radiology), etc. (ROA 103) is GRANTED. This proceeding arises out of a petition filed seeking instructions regarding the Patricia J. Johnson Revocable Trust dated February 11, 2019 (Trust). According to the petition, the settlor of the Trust, Patricia J. Johnson, passed away on January 8, 2023. (ROA 1 at 5:16-17.) Thereafter, her daughter Amy Lynn Bromley became trustee. Pursuant to the initial terms of the Trust, Amy was to receive 50% of the Trust assets and her brothers Steven Edward Johnson and Russell Phillip Johnson would receive 25% each. (ROA 2 at 3:18-27.) Under the terms of an October 2019 document entitled “Chattel Schedule,” Amy allegedly as to receive 100% of the real property (the primary Trust asset), while Steven and Russell would receive “Proceeds of Unsecured Promissory Note in the Sum of \$500,000 from Amy.” (ROA 2 at 4:23-5:14.) In September 2024, Petitioner Tricia M. Johnson, Steven’s wife, filed a petition (Petition) seeking, in part, to void the Chattel Schedule amendment to the Trust on the grounds of undue influence and/or diminished capacity. Steven had been

	diagnosed with dementia, so Tricia filed on his behalf pursuant to a financial power of attorney. (ROA 2 at 2:10-14.) Amy objected to the Petition on various grounds, including the assertion Tricia lacked standing to file the Petition because Steven lacked the capacity to sign financial power of attorney. (ROA 14 at 2:6-12.) Steven passed away in April 2025. (ROA 99 at 17:6.) Tricia is Steven's surviving spouse, the trustee of Steven's revocable living trust, and the nominated executor of Steve's will. (ROA 99 at 17:7-12.) In July 2025, Tricia supplemented her petition to assert her standing to pursue the petition as Steven's successor in interest. (ROA 21.) On December 29, 2025, the court confirmed Tricia had been substituted in as petitioner. (ROA 28.) In April 2026, Amy served a series of subpoenas, including the subpoenas that are the subject of the motions to quash currently before the court. The subpoenas seek Steven's medical records from Kaiser Permanente. Tricia's motions seek to quash the subpoenas on grounds of relevance, privilege, and privacy. Amy as the subpoenaing party bears the burden of showing a "plausible justification" for acquiring documents from a third party." (<i>Facebook, Inc. v. Superior Court (Touchstone)</i> (2020) 10 Cal.5th 329, 345.) She opposes the motions to quash on the following grounds: (1) the subpoenas attached to the motions do not show service on the subpoenaed party; (2) Tricia's standing remains at issue; (3) the motions cite Evidence Code section incorrectly cite 944 rather than section 994; (4) Steven's capacity is an issue in the case. The opposition seeks an award of attorney fees. The subpoenas do not seek documents relevant to the Trust or any issue raised by the Petition. Steven's medical records are relevant only to Amy's assertion that the power of attorney under which Tricia filed the Petition was void based on Steven's lack of capacity. Tricia, however, is now proceeding as Steven's successor in interest. (Code of Civ. Proc., § 377.30 et seq.) No dispute is presented by the pleadings as to Tricia's standing as successor in interest. Because the
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		pleadings govern what is relevant and in the absence of any opposition, the motions to quash are GRANTED. Tricia is directed to give notice.
6	Wessel – Trust (2021-01217028)	Motion to Dismiss
7	Rhodes – Trust (2025-01527303)	Joinder (2), Motion to Appoint Interim PPF, Motion for Suspension of Co-Trustee Eugene S. Rhodes’ Motion to Appoint Interim Professional Private Fiduciary to Replace Existing Co-Trustees (ROA 12) is GRANTED set forth below. Paul M. Rhodes’ Motion for Suspension of Co-trustee Eugene S. Rhodes and Other Relief, Including Appointment of Independent Trust Company (ROA 54) is GRANTED in part as set forth below. The court makes no ruling on the various objections filed in connection with these motions (ROAs 91, 99, 108, 114, 119, 124, & 163) because the evidence objected to is not material to the court’s disposition of the motions. The court considers Eugene’s and Paul’s declarations only for the purpose of demonstrating the state of mind of the declarants, showing hostility and lack of cooperation between them. The court does not consider any of the factual evidence offered in those declarations for their truth. Eugene’s Request for Judicial Notice (ROA 71) is DENIED as the offered documents are not material to the court’s disposition of the motions. Eugene S. Rhodes (Eugene) ¹ and Paul M. Rhodes (Paul) are co-trustees of the Frank A. Rhodes, Jr. Separate Property Trust (Trust). The Trust requires two or more trustees to exercise their powers only by unanimous consent. (Exhibit A to ROA 2 at § 10.10.)

¹ Because the parties share a last name, the court refers to them by their first names. No disrespect is intended.